

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM06
HON. JUDGE Megan L. Wagner

Date: 05/14/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	Geisler – Trust (2020 – 01140947)	Motion for Fees Petitioner Steven Louis Wagner’s Motion for Attorneys’ Fees (ROA 259) is GRANTED in the amount of \$87,400.41. In the Final Statement of Decision in this matter, the court made a finding that Respondent Nancy Key’s maintenance of objections after June 6, 2022 was in bad faith and without reasonable cause. (ROA 251 at 20:16-20.) Accordingly, Respondent was ordered to pay the attorney fees incurred by Petitioner after that date as well as Petitioner’s costs of litigation. (<i>Ibid.</i>; Probate Code section 17211(a).) Pursuant to those findings and orders, Petitioner now seeks fees in the amount of \$110,857.50 and administrative charges/costs of \$5,542.91 for total award of \$116,400.41. Respondent opposes portions of the requested fees on the ground they were unreasonable and/or unnecessary and opposes the awarding of the requested costs. Pursuant to its discretion under Probate Code section 1002, the Court declines to award the nebulously described “administrative fees” as costs. Probate Code section 17211(a) reads, in full: “If a beneficiary contests the trustee’s account and the court determines that the contest was without reasonable cause and in bad faith, the court may award against the contestant the compensation and costs of the trustee and other expenses and costs of litigation, including attorney’s fees, incurred to defend the account. The amount awarded shall be a charge against any interest of the beneficiary in the trust. The contestant shall be personally liable for any amount that remains unsatisfied.” According to Petitioner’s interpretation of section 17211(a), if fees are awarded, the party entitled to recover fees is entitled to recover all their claimed fees and costs, without any consideration of whether the fees were reasonably incurred. According to Respondent’s interpretation of section 17211(a), the party entitled to recover fees may only recover reasonably incurred fees. Neither party provides determinative authority on this issue.

		Unlike many attorney fees statutes (e.g. Civ. Code, §§ 86 & 1738.16, Code of Civ. Proc. §§ 405.38, 1021.9, Evid. Code, § 1127, Fam. Code, § 274, Lab. Code, §§ 1404 & 4555, Welf. & Inst. Code, § 4659.14), section 12911 does not attach the modifier “reasonable” to the amount of fees. This might suggest Petitioner’s interpretation is correct. However, an award of fees pursuant to section 17211 is entirely discretionary as the language used in the statute is that the court “may” award fees, not that the court “shall” award fees. Accordingly, the court exercises that discretion to award fees in an amount less than that requested by Petitioner by reducing the requested fee amount by \$29,000—the amount of fees incurred by Petitioner in seeking summary judgment. The reduction is made because the summary judgment motion filed by Petitioner fell far outside the provisions of Code of Civil Procedures section 437c. Other than the deduction of the requested costs in the amount of \$5,542.91 and the reduction of fees by \$29,000, the court makes no other deductions to the amount of requested and awards fees and costs in the total amount of \$81,857.50. Petitioner is directed to give notice.
	Nunes – Trust (2024 – 01396741)	MOTION FOR PROTECTIVE ORDER Petitioner Peggy Nunes’ Motion for Protective Order (ROA 81) is GRANTED in part and DENIED in part as set forth below. Petitioner seeks a protective order prohibiting Respondents from examining her at deposition regarding her alleged involvement in a 2016 criminal matter. Petitioner asserts the criminal matter is unrelated to the claims raised in this action because the subject trust amendments were executed in 2014 and 2015—before the alleged criminal matter was initiated. Respondents oppose the requested order, arguing that although Petitioner’s criminal conviction for elder abuse occurred after the amendments were executed, the underlying wrongful conduct occurred before the amendments were executed and may have been, at least in part, the reason for the amendments, which excluded Petitioner as a beneficiary. Pursuant to Code of Civil Procedure section 2025.420(b), the court “for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression . . .” “[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (<i>Nativi v. Deutsche Bank National Trust Company</i> (2014) 223 Cal.App.4th 261, 318.)

		The alleged criminal conduct and subsequent criminal proceedings are within the realm of relevance for this proceeding. Petitioner has not met her burden of showing that any annoyance, embarrassment, or oppression that might result from questions regarding those events is unwarranted. Accordingly, the motion is DENIED. To address Petitioner’s concerns, however, the court orders the deposition will be subject to the following terms. (Code of Civ. Proc., § 2025.420(b)(5).) Any portion of the deposition transcript relating to the alleged criminal conduct and subsequent criminal proceedings shall be used only for this litigation and for no other purpose. Prior to trial, the transcript and any testimony relating to the alleged criminal conduct and subsequent criminal proceedings may be shown/disclosed to no one other than: (i) the parties; (ii) their counsel; (iii) agents employed or retained to assist in this litigation; and/or (iv) a settlement officer or mediator during any attempt to settle this litigation. If any party seeks to use any portion of the transcript relating to the alleged criminal conduct and subsequent criminal proceedings in connection with a motion filed with this court, that portion shall be filed conditionally under seal and accompanied by a motion to file under seal. At trial, subject to any objections asserted at that time, any portion of the transcript may be shown to the trier of fact and court staff. Respondents are directed to give notice.